

26STCV01163 26STCV01163

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 26STCV01163 Hearing Date: August 4, 2026 Dept: 617

Dept.

617

Date:

8-4-26

Case

#: 26STCV01163

Trial

Date: None Set

TRIAL PREFERENCE

MOVING

PARTY: Plaintiff, Kae-soon Choe

RESPONDING

PARTY: Defendants, Jun Ho Yang, Ho Soon Hwangyang, and The Christian Herald,
Inc.

RELIEF

REQUESTED

Motion

for Trial Preference

SUMMARY

OF ACTION

Plaintiff

Kae-soon Choe sued her pastor, Defendant Jun Ho Yang, alleging that Yang used her confidence in him to his own advantage. Plaintiff claims that in helping her sell her apartment, Yang diverted \$6.4 million of the net proceeds to his non-profit, Defendant The Christian Herald, Inc. Plaintiff alleges that she signed numerous documents presented by Yang based on his representation that they were related to the sale of her property. The documents were only in English, a language Plaintiff does not read or speak well. Plaintiff also claims that she was not provided with copies of the documents. Plaintiff brings causes of action for conversion, breach of fiduciary duty, civil damages for theft, and financial elder abuse.

RULING: Granted.

Plaintiff,

an 86-year-old woman diagnosed with
Alzheimer's

disease, moves for trial preference. The motion comes after the Court previously continued the hearing to permit Plaintiff to submit a declaration "that all essential parties have been served with process or have appeared." (Code Civ. Proc., § 36, subd. (c)(1).) Plaintiff did so on July 14, 2026. [Choe Suppl. Decl. ¶¶ 1-8.] On July 22, 2026, Defendants Jun Ho Yang, Ho Soon Hwangyang, and The Christian Herald, Inc. filed a supplemental opposition arguing that granting preference would eliminate their statutory right to move for summary judgment, responsive pleadings by newly served defendants may unsettle the pleadings, and Plaintiff does not show preference is necessary. Plaintiff's motion is granted.

Under

Code of Civil Procedure section 36, subdivision (a), "[a] party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc., § 36.5.)

Plaintiff

is entitled to a trial preference. Plaintiff's physician, Dr. Justin Rheem, states that Plaintiff "has been diagnosed with Alzheimer's disease, depression, chronic obstructive pulmonary disease, hypertension, and significant ambulatory limitations due to chronic knee pain. Her overall medical condition is progressive and places her at high risk for further functional and cognitive decline." [Rheem Decl. ¶¶ 2-3; Mot. Ex. A.] He opines that "[g]iven her advanced age and the nature of her medical conditions, any prolonged delay in legal proceedings may substantially impair her ability to meaningfully participate in her case" and that "expediting the trial would be in the best interest of preserving her ability to engage and provide input while she still retains limited capacity to do so." [Mot. Ex. A.] This evidence shows that Plaintiff suffers from a progressive cognitive condition that significantly risks her ability to participate in proceedings where her participation and/or testimony is critical. Rather than present evidence to controvert Plaintiff's showing, Defendants demand more medical details and timelines regarding Plaintiff's condition, a requirement unfounded in the statutory text and case law. (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534-35 ["[A]ll subdivision (a) requires is a showing that that party's 'health ... is such that a preference is necessary to prevent prejudicing [her] interest in the litigation'"].) Plaintiff has thus sufficiently shown that a preference is necessary to protect her interests.

Defendants'

procedural arguments are unavailing. They argue that even if trial is set for the maximum 120 days following the grant of preference, they would only have 7-9 days to prepare their summary judgment motions, making exercise of their statutory right "procedurally impossible." They further contend that because the newly served defendants are not required to respond until 5 days after the instant hearing, any filed demurrer or motion to strike may unsettle the pleadings and the new parties may similarly be unable to complete discovery and move for summary judgment. However, the "[f]ailure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (Swaithe v. Superior Court (1989) 212 Cal.App.3d 1082, 1085.) Indeed, subdivision (a)'s "absolute command" applies "despite recognition that in certain instances there are strong countervailing considerations—deriving from principles of efficient trial court management; from fairness and due process to other litigants; and from divergent public

policy or statutory contexts in which the section 36(a) mandate may be difficult, impractical, or impossible to realize.” (Pabla v. Superior Court (2023) 90 Cal.App.5th 599, 604, fn. 5.) Defendants’ procedural arguments thus fail.

Plaintiff’s

motion is therefore granted. “Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party’s attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.” (Code Civ. Proc., § 36, subd. (f).) A 120-day setting window from the hearing date is Wednesday, December 2, 2026. Given the Court sets its trials for Mondays, a starting date of November 30, 2026 complies with both the setting window and court policy.

The

Court orders the parties to cooperate in the expedited setting of the depositions of witnesses, experts, and parties. Depositions can occur via video or telephonic means due to health concerns and/or in the interests of efficiently expediting discovery should Plaintiff or witnesses require accommodation. The Court also advises the parties that any extensive discovery disputes may be referred to a referee via expedited schedule.

Plaintiff

to give notice.